Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-04, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING THE OPERATION OF ELECTRIC BICYCLES, ELECTRIC SCOOTERS, AND LIGHT CONVEYANCES, PRESCRIBING SPEED LIMITS AND SAFETY STANDARDS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Electric Mobility and Light Vehicle Regulation Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Pursuant to Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), the City Government of Davao is authorized to regulate traffic and the use of streets to protect public safety and general welfare.

It is hereby declared the policy of the City of Davao to promote active and sustainable transportation by providing guidelines for the safe operation of electric bicycles, e-scooters, and light mobility vehicles, preventing road crashes, and protecting pedestrians and motorists across city streets.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall mean:

(a) Electric Bicycle (E-Bike) - refers to any two- or three-wheeled vehicle equipped with an electric motor and functional pedals;

(b) Electric Scooter (E-Scooter) - refers to a stand-up or sit-down light two-wheeled vehicle powered by an electric motor;

(c) City Streets - refers to roads and streets within Davao City not designated as national or provincial highways;

(d) Dedicated Bicycle Lanes - refers to designated lanes on public roads reserved for bicycles and light mobility conveyances;

(e) CTTMO - refers to the City Transport and Traffic Management Office of Davao City.

SECTION 4. SCOPE AND COVERAGE - This Ordinance shall apply to all users, riders, and operators of electric bicycles, electric scooters, and light electric conveyances driven on public streets, lanes, and thoroughfares within Davao City.

SECTION 5. SAFETY REQUIREMENTS AND PROTECTIVE GEAR - All riders and operators of electric bicycles and e-scooters traversing public roads in Davao City shall observe the following safety requirements:

(a) Mandatory wearing of protective bicycle or motorcycle safety helmets at all times;

(b) Equipping vehicles with operational white front headlights and red rear reflectors or tail lights during nighttime operation from 6:00 PM to 6:00 AM;

(c) Installation of functional mechanical brakes and an audible bell or horn;

(d) Prohibition against carrying passengers beyond the designed manufacturer capacity of the vehicle.

SECTION 6. MAXIMUM SPEED LIMITS ON MAJOR THOROUGHFARES AND HIGHWAYS - To ensure the safety of pedestrians and light vehicle commuters, the maximum allowable speed for all motor vehicles and electric conveyances traversing national highways within Davao City, including Daang Maharlika and the Davao-Cotabato Highway, shall not exceed fifteen (15) kilometers per hour.

Any driver or operator exceeding this uniform fifteen (15) kilometer per hour limit on any national highway within the city shall be cited for reckless driving and penalized accordingly.

SECTION 7. USE OF DESIGNATED BICYCLE LANES - Operators of electric bicycles and e-scooters shall strictly utilize designated bicycle lanes wherever such lanes have been demarcated by the City Government.

Where no dedicated bike lane exists, light vehicles shall operate along the rightmost lane of the roadway and shall yield the right-of-way to pedestrians crossing at intersections and marked pedestrian lanes.

SECTION 8. ENFORCEMENT AND IMPLEMENTATION - The City Transport and Traffic Management Office (CTTMO), in coordination with the Traffic Enforcement Unit of the Davao City Police

Office (DCPO), shall be the lead enforcement agency of this Ordinance.

Deputized traffic enforcement personnel are authorized to issue City Traffic Citation Tickets (CTCT) to any rider or operator violating the provisions of this Ordinance.

SECTION 9. NO-CONTEST ADMINISTRATIVE SETTLEMENT - Any person issued a citation ticket for violation of Section 5 or Section 7 who does not wish to contest the citation may avail of the No-Contest provision by paying an administrative fine to the City Treasurer within seventy-two (72) hours:

(a) First Offense: Three Hundred Pesos (Php 300.00);

(b) Second Offense: Five Hundred Pesos (Php 500.00);

(c) Third Offense: One Thousand Pesos (Php 1,000.00).

SECTION 10. PENALTIES - Any person who violates the provisions of this Ordinance and fails to avail of administrative settlement shall, upon conviction before a court of competent jurisdiction, be penalized by a fine of One Thousand Pesos (Php 1,000.00) for the first offense, Three Thousand Pesos (Php 3,000.00) for the second offense, and Five Thousand Pesos (Php 5,000.00) or imprisonment of up to thirty (30) days for subsequent offenses.

SECTION 11. SEPARABILITY CLAUSE - If any provision of this Ordinance is declared unconstitutional or invalid, the other provisions not affected thereby shall remain in full force and effect.

SECTION 12. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of local circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator